

HOUSE No. 2597

The Commonwealth of Massachusetts

PRESENTED BY:

David F. DeCoste

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the definition of law enforcement officers as pertaining to possession of firearms.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David F. DeCoste</i>	<i>5th Plymouth</i>	<i>1/17/2025</i>
<i>Mackenzie Slocumb</i>		<i>1/17/2025</i>

HOUSE No. 2597

By Representative DeCoste of Norwell, a petition (accompanied by bill, House, No. 2597) of David F. DeCoste and Mackenzie Slocumb for legislation to further regulate the possession of firearms by law enforcement officers. Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the definition of law enforcement officers as pertaining to possession of firearms.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 71 of chapter 135 of the Acts of 2024 is hereby amended by
2 striking out subsection (e) in its entirety and inserting in place thereof the following:-

3 (e) This section shall not apply to transfer or possession by: (i) a qualified law
4 enforcement officer or a qualified retired law enforcement officer, as defined in the Law
5 Enforcement Officers Safety Act of 2004, 18 U.S.C. sections 926B and 926C, respectively, as
6 amended; (ii) a law enforcement officer as defined by MGL Chapter 6E, Section 1 or in Code of
7 Massachusetts Regulations 550 CMR 3.02, (iii) a federal, state or local law enforcement agency;
8 or (iv) a federally licensed manufacturer solely for sale or transfer in another state or for export.

9 SECTION 2. Section 122 of chapter 135 of Acts of 2024 is hereby amended by striking
10 out the section in its entirety and inserting in its place thereof the following:-

Section 122. Said section 10 of said section 269, as so appearing, is hereby further amended by striking out, in line 170, the words “law enforcement officer” and inserting in place thereof the following words:- a law enforcement officer as defined by MGL Chapter 6E, Section 1, a qualified law enforcement officer or a qualified retired law enforcement officer, as defined in the Law Enforcement Officers Safety Act of 2004, 18 U.S.C. sections 926B and 926C, respectively, as amended.

SECTION 3. Section 124 of chapter 135 of the Acts of 2024 is hereby amended by striking out paragraph (5) in its entirety and inserting in its place thereof the following:-

(5) This subsection shall not apply to a law enforcement officer as defined by MGL Chapter 6E, Section 1, a qualified law enforcement officer or a qualified retired law enforcement officer, as defined in the Law Enforcement Officers Safety Act of 2004, 18 U.S.C. sections 926B and 926C, respectively, as amended or to a security guard employed at the prohibited area while at the location of their employment and during the course of their employment. Nothing in this paragraph shall limit the authority of any municipality, county or department, division, commission, board, agency or court of the commonwealth to adopt policies further restricting the possession of firearms in areas under their control.